MASTER FUNCTIONAL SKILLS • REGULATORY GOVERNANCE (MFS-GOV-08)

UK GDPR, Data Protection & Assessment Record Retention Policy

Lawful processing, encryption, candidate privacy rights, and statutory Ofqual/Awarding Body retention schedules for learner and exam data.

Document Reference	MFS-GOV-08	**Effective Date**	11 November 2026
Quality & Centre Lead	Abdul (Head of Centre)	**Regulatory Alignment**	UK GDPR / Data Protection Act 2018 & Ofqual Condition I4

1. Lawful Basis & Data Minimisation Principles

Master Functional Skills processes personal data strictly in accordance with the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018:

- **Lawful Bases:** Contractual necessity (delivering tuition and booking examinations), Legal & Regulatory obligation (verifying candidate identity, registering ULNs, and retaining assessment audit records for Ofqual/Awarding Organisations), and Explicit Consent (processing special-category medical/neurodiversity data for Reasonable Adjustments).
- **Zero Third-Party Marketing Sharing:** Candidate personal data is shared exclusively with the nominated Awarding Organisation (e.g., Open Awards), the Learning Records Service (LRS / ULN), and approved exam invigilation platforms.

2. Technical Security & Statutory Retention Schedule

All candidate records, ID scans, SLC video recordings, and IQA documentation are stored on encrypted, access-controlled UK/EEA servers with Multi-Factor Authentication (MFA) enforced across all staff accounts:

Record Category	Security & Storage Control	Statutory Retention Period	Disposal Method
Candidate ID Verification Photos	Encrypted access-restricted folder (Quality Lead & Invigilator only)	Deleted within 30 days post-certification (unless flagged for malpractice audit)	Cryptographic secure wipe
English SLC Video Recordings & Assessor Records	Encrypted cloud/local vault accessible to Assessor, IQA & EQA	Minimum 3 years post-certification (or until EQA sampling sign-off + audit window)	Permanent secure deletion
Remote Invigilation Streams / Incident Logs	Encrypted XAMS / centre invigilation storage	6 months standard (3 years if subject to appeal	Automated secure purge

		or malpractice inquiry)	
Enrolment, ULN, Marks, IQA & Certificate Logs	MFA-protected Centre Management Register	6 years post-certification for regulatory & replacement certificate verification	Secure archival purge

3. Candidate Data Rights & Data Breach Response

Learners may exercise their UK GDPR rights at any time by contacting the Data Protection Lead (Abdul):

- Subject Access Requests (SAR), Rectification & Erasure: Fulfilled free of charge within 1 calendar month (noting that statutory exam registration and certificate audit logs cannot be erased before the regulatory retention period expires).
- **72-Hour Breach Protocol:** Any suspected personal data breach is contained immediately, logged in the Data Security Register, and reported to the ICO and affected Awarding Organisation within 72 hours where required by law.

Document Control & Annual Governance Sign-Off

Approved By (Head of Centre & Quality Nominee):	Abdul — Master Functional Skills
Approval & Publication Date:	11 November 2026 (Version 2026.11)
Next Mandatory Annual Review Date:	11 November 2027 (or immediately upon Ofqual / Awarding Body update)